

3. **S-CV-0052987 Willms, Karey Rennee v. Juchau, Corey**

This tentative ruling is issued by **Commissioner Michael A. Jacques**. If oral argument is requested, it will be heard on **June 18, 2026, at 8:30 a.m. in Department 40** before Commissioner Michael A. Jacques.

Motion for Attorney's Fees

Respondents move for attorney's fees based on being the prevailing party in a civil harassment restraining order proceeding. Petitioner opposes the motion. Respondents filed untimely objections to petitioner's evidence in her opposition. The court did not consider any evidence related to arguing the merits of the underlying case, as that is not relevant for the purposes of this motion.

Background

In June 2024, petitioner filed two petitions for civil harassment restraining orders ("CHRO") under Code of Civil Procedure section 527.6: one against Corey Juchau (S-CV-0052987) and one against Lynele Juchau (S-CV-0053002). The cases were consolidated for trial before Commissioner Michael Jacques.

Trial testimony proceeded over three hearing days: September 16, October 15, and October 23, 2024.

On February 28, 2025, the court-ordered mediation did not proceed because neither party appeared, so the Court dropped the petition. The minute order marks the matter "Drop ... Failed to appear," reflects that both petitioner and respondents were "Not Present," and states "petition dismissed."

Analysis

"A person who has suffered harassment as defined in subdivision (b) may seek a temporary restraining order and an order after hearing prohibiting harassment as provided in this section." (Code Civ. Proc., § 527.6(a)(1).) "The prevailing party in an action brought pursuant to this section may be awarded court costs and attorney's fees, if any." (Code Civ. Proc., § 527.6(s).)

Respondents seek an award of attorneys' fees of \$38,683.00 incurred with regard to the CHRO Actions, plus additional attorneys' fees incurred with regard to filing this motion.

Timeliness of the motion

The California Rules of Court provide:

A notice of motion to claim attorney's fees for services up to and including the rendition of judgment in the trial court – including

attorney's fees on an appeal before the rendition of judgment in the trial court – must be served and filed within the time for filing a notice of appeal under rules 8.104 and 8.108 in an unlimited civil case or under rules 8.822 and 8.823 in a limited civil case.

(Cal. Rules of Court, Rule 3.1702(b)(1). The time limits set forth for requests of attorney's fees borrow the time limits for filing a notice of appeal. (*Crespin v. Shewry* (2004) 125 Cal.App.4th 259, 266.) Under Rule 8.104, an attorneys' fees motion must be filed "on or before the earliest of (A) 60 days after the superior court clerk serves on the party filing the notice of appeal a document entitled 'Notice of Entry' of judgment or a filed-endorsed copy of the judgment, showing the date either was served; (B) 60 days after the party filing the notice of appeal serves or is served by a party with a document entitled 'Notice of Entry' of judgment or a filed-endorsed copy of the judgment, accompanied by proof of service; or (C) 180 days after entry of judgment ... The entry date of an appealable order that is entered in the minutes is the date it is entered in the permanent minutes." (Cal. Rules of Court, rule 8.104 (c)(2).)

The petition here was dismissed by minute order on February 28, 2025, when neither party appeared. The order marks the matter "Drop . . . Failed to appear" and bears the notation "petition dismissed." (Thomas Decl. ¶ 8, Ex. C.) The order did not direct preparation of any further written order. No notice of entry was served, so the 180-day period expired on August 27, 2025.

Respondents did not file or serve their motion until January 29, 2026, 155 days late, failing the rule's "served and filed" requirement on both counts. (See Cal. Rules of Court, rule 3.1702 (b)(1).) (See *Sanabria v. Embrey* (2001) 92 Cal.App.4th 422, 429.) Respondents have not requested an extension for good cause under rule 3.1702(d).

Prevailing party

Respondents argue petitioners have obtained none of the relief they requested, and respondents are not subject to any court order with regard to petitioners' claims in the CHRO Action. Respondents argue that, "because section 527.6, "does not define 'prevailing party,' the 'general definition of "prevailing party" in [C.C.P.] section 1032 may be used.' *Elster v. Friedman* (1989) 211 Cal.App.3d 1439, 1443.) Section 1032(a)(4), provides that a 'prevailing party' includes 'a defendant in whose favor a dismissal is entered.'" In *Adler v. Vaicius* (1993) 21 Cal.App.4th 1770, a CHRO petitioner obtained a TRO against a respondent but later dismissed the case. The trial court determined respondent was the prevailing party and awarded him attorney's fees and costs, a decision upheld on appeal.

In *Elster* and *Adler*, the petitioner moved to dismiss the case. That was not the result here. In this case, neither party appeared for court-ordered mediation, and the petition was dropped and dismissed. Moreover, the court did not enter judgment in favor of the respondents on the order.

Under section 527.6, subdivision (s), “[t]he prevailing party in an action brought pursuant to this section *may* be awarded court costs and attorney’s fees, if any.” (Italics emphasis added.) By its terms, the subdivision gives trial courts discretion “to award attorney fees to a prevailing party—plaintiff or defendant.” (*Krug v. Maschmeier* (2009) 172 Cal.App.4th 796, 802). The “determination of the prevailing party lies in the court’s sound discretion” and that “determination must be upheld unless there is a manifest abuse of discretion.” (*Elster* (1989) 211 Cal.App.3d 1439, 1443.)

Therefore, the court finds, in its discretion, respondents do not meet the definition of the prevailing party.

Conclusion

Based on the foregoing, respondents’ motion for attorney’s fees is denied.

4. **S-CV-0053111 LeRoy, Joseph v. Pickett, Ryan A**

Defendants are advised the notice of motion for judgment on the pleadings must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Defendants Ryan A. Pickett and Traci I. Pickett’s Motion for Judgment on the Pleadings

Defendants Ryan A. and Traci I. Pickett (collectively “Picketts”) move for judgment on the pleadings as to the first, second, third, fourth, sixth and ninth causes of action asserted in the first amended complaint (“FAC”) filed by plaintiff Joseph A. Leroy, individually and as trustee of the Joseph A. Leroy Trust (“plaintiff”).

A motion for judgment on the pleadings tests the legal sufficiency of the complaint and is the equivalent to a general demurrer. (Code Civ. Proc. (“CCP”) § 438; *Blank v. Kirwan* (1985) 39 Cal.3d 311.) The court accepts as true all material facts properly pleaded, but not contentions, deductions, or conclusions of law. (*Ibid.*)

As to the first cause of action for breach of contract, the motion is denied. The court finds the FAC alleges sufficient facts to support this claim, in light of factual allegations supporting plaintiff’s fraud theories as discussed below. (*Shapiro v. Hu* (1986) 188 Cal.App.3d 324, 333-334.)

As to the second cause of action for fraud (intentional misrepresentation) and the third cause of action for fraud (concealment) the motion is denied. The court finds the FAC alleges sufficient facts to support misrepresentations and concealment regarding the severity of conditions at the property relating to the barking dogs. California law recognizes liability not only for complete nondisclosure but also for partial or misleading disclosures that materially misrepresent a condition. (See *Lingsch v. Savage* (1963) 213 Cal.App.2d 729, 735; *Pashley v. Pac. Elec. Co.* (1944) 25 Cal.2d 226, 235.) As to the fourth cause of action for negligent misrepresentation, the motion is denied. The court finds the FAC alleges sufficient facts to support this claim.